

## Merchant Agreement

This Agreement is made on 7 December 2018 between anyvio Financial Solutions, Güterlicher Straße 123, 33415 Verl, Germany (hereinafter "AFS") and Polarism Outdoor AS, Karl Johans gate 3, 0156 Oslo, Norway (hereinafter "Merchant"), together the "Parties".

### 1. Scope of Services

AFS shall provide the services described in Annex 1 (the "Services") to Merchant in accordance with this Agreement and the service levels agreed therein. Merchant shall provide all information reasonably required for the performance of the Services.

### 2. Term and Termination

This Agreement enters into force on the Effective Date and shall run for an initial term of twenty-four (24) months. It renews automatically for successive periods of twelve (12) months unless terminated by either Party with three (3) months' written notice prior to the end of the then-current term. The right to terminate for cause remains unaffected.

### 3. Fees and Payment

In consideration of the Services, Merchant pays the remuneration listed in the price schedule. Payment is due fourteen (14) days after invoice date. All amounts are exclusive of value added tax.

### 4. Limitation of Liability

Each Party's total liability arising out of this Agreement, whether in contract, tort or otherwise, is capped at EUR 250,000 per contract year. This cap does not apply to damages caused willfully, to injury of life, body or health, or to breaches of confidentiality.

### 5. Confidentiality

The Parties undertake to treat as strictly confidential all business and trade secrets disclosed to them and not to make them available to third parties without prior written consent. Disclosure to professional advisors bound by statutory secrecy is permitted.

### 6. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods (CISG).

### 7. Dispute Resolution

All disputes arising out of or in connection with this Agreement shall be finally settled under the Arbitration Rules of the German Arbitration Institute (DIS) by three arbitrators. The seat of arbitration is Frankfurt am Main.

### 8. Force Majeure

Neither Party shall be liable for any failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, war, pandemics or governmental action, provided that the affected Party notifies the other without undue delay.

#### 9. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

#### 10. Audit Rights

Merchant may, upon thirty (30) days' written notice and no more than once per calendar year, audit AFS's compliance with this Agreement during normal business hours. AFS shall provide reasonable assistance and access to relevant records.

#### 11. Anti-Corruption and Compliance

The Parties warrant that they have not offered, promised or granted any undue advantage to public officials or business partners in connection with this Agreement and will not do so. A breach of this warranty entitles the other Party to terminate without notice.

#### 12. Change of Control

Either Party may terminate this Agreement with immediate effect if the other Party undergoes a change of control, meaning the acquisition of more than fifty percent (50%) of its voting rights by a third party.

#### 13. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For Arctic Financial Solutions:

\_\_\_\_\_  
Managing Director

For Polarstar Outdoor AS:

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Authorized Signatory